Appendix—Public Land Orders

[Public Land Order 1289]

[1039953, 1959902]

IDAHO

REVOKING EXECUTIVE ORDER NO. 3661 OF APRIL 13, 1922, WHICH RESERVED PUBLIC LANDS FOR USE OF THE FOREST SERVICE AS THE HERMAN ADMINISTRATIVE SITE; REVOKING PUBLIC LAND ORDER NO. 180 OF OCTOBER 1, 1943, WHICH WITHDREW PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT AS A BOMBING RANGE

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 3661 of April 13, 1922, which temporarily withdrew the following-described lands in Idaho for use of the Forest Service, Department of Agriculture, as the Herman Administrative Site, is hereby revoked:

BOISE MERIDIAN

T. 3 S., R. 43 E.,
Sec. 21, SE¼SW¼;
Sec. 28, NE¼NW¼.

The areas described aggregate 80 acres.

2. Public Land Order No. 180 of October 1, 1943, which withdrew the following described lands for use of the War Department as a bombing range is hereby revoked:

BOISE MERIDIAN

T. 2 N., R. 28 E.,
Sec. 1;
Sec. 12, E½, NW¼, N½SW¼, SE¼SW¼.
T. 2 N., R. 29 E.,
Secs. 5 to 8, inclusive.
T. 3 N., R. 29 E.,
Secs. 31 and 32.

The areas described aggregate 5,322.65 acres.

3. The lands described in paragraph 2 are withdrawn by Public Land Order No. 637 of April 7, 1950, for use of the Atomic Energy Commission.

4. The land in paragraph 1 of this order is located about 50 miles southeast of Idaho Falls, Idaho, and is accessible by means of a meandering, graded road. The tract is isolated, since all of the adjoining land is patented. The land, which is at an elevation of about 6,600 feet, is within Idaho Grazing District No. 3.

5. No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

6. Subject to any valid existing rights and the requirements of applicable law, the restored lands described in paragraph 1 hereof, are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on May 30, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on August 29, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs 6a (1) and (2) above, presented prior to 10:00 a. m. on August 29, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws and to location for metalliferous minerals. They will be open to location for nonmetalliferous minerals under the United States mining laws beginning at 10:00 a. m. on August 29, 1956.

Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Boise, Idaho.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

APRIL 24, 1956.

[F. R. Doc. 56-3301; Filed, Apr. 27, 1956; 8:46 a. m.]

[Public Land Order 1290]

[69257]

NEW MEXICO

PARTIALLY REVOKING THE EXECUTIVE ORDER OF APRIL 19, 1869, WHICH WITHDREW LANDS FOR USE OF THE WAR DEPARTMENT AS THE FORT BAYARD MILITARY RESERVATION; WITHDRAWING THE RELEASED LANDS FOR USE OF THE FOREST SERVICE AS AN ADMINISTRATIVE SITE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive order of April 19, 1869, withdrawing public lands in New Mexico for use of the War Department as the Fort Bayard Military Reservation, is hereby revoked so far as it affects the following-described lands:

TRACT A

From the quarter corner common to sections 35 and 36, T. 17 S., R. 13 W., the line runs N. 89°53' W. 1,530 feet to point of beginning, thence

N. 89° 53' W. 1,150 feet;
N. 00° 28' W. 1,855 feet;
S. 52° 38' E. 215 feet;
S. 30° 03' 1. 2,000 feet, to point of beginning.

The area described contains 22.5 acres.

TRACT B

From the quarter corner common to sections 25 and 26, T. 17 S., R. 13 W., the line runs S. 02° 04' E. 2675 feet, thence

N. 89° 53' W. 1590 feet;
N. 00° 43' W. 615 feet;
West 400 feet;
N. 22° 55' E. 1450 feet;
N. 47° 03' E. 1590 feet;
N. 18° 18' W. 2380 feet;
East 990 feet;
S. 01° 30' E. 2660 feet, to point of beginning.

The area described contains 133.2 acres.

2. Subject to valid existing rights, the lands released by paragraph 1 of this order, are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for use of the Forest Service, Department of Agriculture as an administrative site in connection with the administration of the Gila National Forest.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

APRIL 24, 1956.

[F. R. Doc. 56-3302; Filed, Apr. 27, 1956; 8:46 a. m.]

[Public Land Order 1291]

[Wyoming 029936 (Nebr.)]

NEBRASKA

WITHDRAWING PUBLIC LANDS FOR USE OF THE DEPARTMENT OF THE ARMY IN CONNECTION WITH THE GAVINS POINT DAM AND RESERVOIR PROJECT

By virtue of the authority vested in the President and pursuant to Executive